

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 861

Introduced by Bostar, 29.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Building Construction Act; to amend
- 2 section 71-6401, Revised Statutes Cumulative Supplement, 2024; to
- 3 require certain inspection records be made available to the public;
- 4 to harmonize provisions; and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 71-6401, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 71-6401 Sections 71-6401 to 71-6408 and section 2 of this act shall
4 be known and may be cited as the Building Construction Act.

5 **Sec. 2.** (1) For purposes of this section:

6 (a) Authorized inspector means an individual credentialed with the
7 state agency, county, city, or village issuing permits or a third-party
8 inspector registered or licensed with the State of Nebraska contracted as
9 a result of project specification requirements. Authorized inspector does
10 not include an individual performing a self-performed inspection for the
11 individual's own permit or building; and

12 (b) Inspection records means the pass or fail results, including the
13 reasons for failure or deviation from project specifications, of any
14 inspection required by the permitting entity, architecture scope,
15 engineered scope, or warranty requirement as a condition of construction
16 in association with the address of the permit requested or issued.

17 (2) Any state agency, county, city, or village that requires an
18 inspection as part of a building permit or structural scope of project
19 shall use an authorized inspector for such inspection. Any inspection
20 records from such inspection shall be made available to the public if the
21 structure for which the permit was requested or issued is standing at the
22 time of the request for such inspection records.

23 **Sec. 3.** Original section 71-6401, Revised Statutes Cumulative
24 Supplement, 2024, is repealed.